CHAPTER 43 Election Commission

The Election Commission is a permanent and an independent body established by the Constitution of India directly to ensure free and fair elections in the country. Article 324 of the Constitution provides that the power of superintendence, direction and control of elections to parliament, state legislatures, the office of President of India and the office of Vice-President of India shall be vested in the election commission. Thus, the Election Commission is an All-India body in the sense that it is common to both the Central government and the state governments.

It must be noted here that the election commission is not concerned with the elections to panchayats and municipalities in the states. For this, the Constitution of India provides for a separate State Election Commission[1].

COMPOSITION

Article 324 of the Constitution has made the following provisions with regard to the composition of election commission:

1. The Election Commission shall consist of the chief election commissioner and such number of other election commissioners, if any, as the President may from time to time fix.

2. The appointment of the chief election commissioner and other election commissioners shall be made by the President.

3. When any other election commissioner is so appointed, the chief election commissioner shall act as the chairman of the election commission.

4. The President may also appoint after consultation with the election commission such regional commissioners as he/she may consider necessary to assist the election commission.

5. Subject to the provisions of any law made by the Parliament, the conditions of service and tenure of office of the election commissioners and the regional commissioners shall be determined by the President.



Since its inception in 1950 and till 15 October 1989, the election commission functioned as a single member body consisting of the Chief Election Commissioner. On 16 October 1989, the President appointed two more election commissioners to cope with the increased work of the election commission on account of lowering of the voting age from 21 to 18 years.[2] Thereafter, the Election Commission functioned as a multimember body consisting of three election commissioners. However, the two posts of election commissioners were abolished in January 1990 and the Election Commission was reverted to the earlier position. Again in October 1993, the President appointed two more election commissioners. Since then and till today, the Election Commission has been functioning as a multi-member body consisting of three election commissioners.